

HOUSE No. 2276

The Commonwealth of Massachusetts

PRESENTED BY:

Carlos González and Patricia A. Duffy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to clinical or educational programs under the Dover amendment.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carlos González</i>	<i>10th Hampden</i>	<i>1/17/2025</i>

HOUSE No. 2276

By Representatives González of Springfield and Duffy of Holyoke, a petition (accompanied by bill, House, No. 2276) of Carlos González relative to zoning for clinical or educational programs. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to clinical or educational programs under the Dover amendment.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The second paragraph of section 3 of chapter 40A of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by inserting after the word
3 “requirements”, in lines 60 and 61, the following words:- ; provided, further, that no such land or
4 structures located in a low income city or town, defined for purposes of this paragraph as a city
5 or town whose average median income is equal to 60 per cent or less of the average median
6 income of the commonwealth, shall be used for educational purposes pursuant to this section,
7 including, but not limited to the purpose of opening a substance abuse or alcohol rehabilitation
8 center or a clinic, nor be exempt from zoning regulation pursuant to this section, without first
9 obtaining the approval of the legislative body of such city or town.

10 SECTION 2. Said section 3 of said chapter 40A, as so appearing, is hereby further
11 amended by adding the following paragraph:-

12 Notwithstanding any general or special law to the contrary, any person, organization,
13 institution or corporation that purchases property within a city or town to be used for educational
14 purposes pursuant to this section, and who fails, within 2 years to substantially improve such
15 property shall be assessed at the property's highest and best use at commercial rate for such
16 property, with no exemption.